

PROCEEDINGS BEFORE THE INSURANCE OMBUDSMAN, Noida
(State of Uttarakhand & State of Uttar Pradesh (Districts of western part))
(Under Rule No.16/17 of Insurance Ombudsman Rules 2017)
Ombudsman Name : RAJIV TALWAR
CASE OF COMPLAINANT - VIKAS GANDHI
VS
RESPONDENT: ACKO GENERAL INSURANCE CO. LTD
COMPLAINT REF: NO: NOI-H-056-2526-0961
AWARD NO: IO/NOI/A/HI/0061/2026-2027

1.	Name & Address Of The Complainant			VIKAS GANDHI D-20, 1st FLOOR, DAYANAND NAGAR				
2.	Type Of Policy: Health							
	Policy Details:							
	Policy Number	Sum Assured/Insured	From Date	To Date	DOC	Premium	Policy Term/Mode	Paying Term
	ASHP202400001607	1000000	04-Nov-2024	03-Nov-2025	04-Nov-2024	31065	1 YEAR/ANNUAL	SINGLE
3.	Name of Insured Name of the Policy Holder			VIKAS GANDHI VIKAS GANDHI				
4.	Name of insurer /Broker			ACKO GENERAL INSURANCE CO. LTD				
5.	Date of Repudiation							
6.	Reason For Repudiation			Filed a claim for the expenses incurred for treatment of a condition falling under waiting period. These costs are not a part of your insurance coverage.				
7.	Date of Receipt of the complaint			07-Aug-2025				
8.	Nature of Complaint			REPUDIATION OF HEALTH CLAIM				
9.	Amount of Claim			37358.00				
10.	Date of Partial Settlement							
11.	Amount of relief sought			37358				
12.	Complaint registered under Insurance Ombudsman Rules 2017			Rule 13(1)(b) — any partial or total repudiation of claims by an insurer				
13.	Date of Hearing			24-Jun-2026				
14.	Representation at the hearing							
	a)For the Complainant			VIKAS GANDHI				
	b)For the Insurer			RAVI INKOLLU (DGM LITIGATION)				
15.	Complaint how disposed			AWARD				

COMPLAINT REF: NO: NOI-H-056-2526-0961

Brief Facts of the Case:

1. Complaint NOI-H-056-2526-0961 (claim no. 25062100350-1 for Rs. 37,358) is filed by Mr. Vikas Gandhi (Complainant) against the rejection of his hospitalization claim by Acko General Insurance Limited (Insurer).

2. The policy no. is ASHP202400001607 for the period of 04.11.2024 to 03.11.2025 for the Sum Insured of Rs 10,00,000/-. The first policy date is 04.11.2024.

3. He was admitted in RS Maitri Health Care, Ghaziabad from 20.06.2025 to 21.06.2025. The discharge summary reveals the diagnosis as "Tight phimosis with Balanitis with meatal stenosis". The history of the illness is: Poor flow of urine: The procedure at the Hospital: Circumcision + Meatoplasty.

4. Reimbursement claim for Rs 37,358/- (Insurer recorded claimed amount as Rs 31,846/-) was filed for admission 20.06.2025 to 21.06.2025.

5. Insurer rejected this claim under email dated 26.06.2025 - After carefully reviewing your claim, we noticed that you have filed a claim for the expenses incurred for treatment of a condition falling under waiting period. Unfortunately, these costs are not a part of your insurance coverage. As a result, we are unable to approve your claim.

4.1.2 Specific Illnesses

Any medical expenses related to the following medical disease will not be covered for 2 years.

a. Expenses related to the treatment of the listed Conditions, surgeries/treatments shall be excluded until the expiry of number of months, as specified in the Schedule, of continuous coverage after the date of inception of the first policy with Us. This exclusion shall not be applicable for claims arising due to an accident.

b. The waiting period for listed conditions shall apply even if contracted after the policy or declared and accepted without a specific exclusion.

6. Complainant represented vide email dated 24.06.2025 -

(a) I contracted a serious infection, was hospitalized for one full day, and underwent surgical treatment, medications, and necessary diagnostic tests.

(b) The total cost incurred was ₹34,661, all of which is well-documented.

(c) My treatment was genuine, medically necessary, and confirmed by the discharge summary and hospital records.

(d) I had no control over the infection that led to hospitalization. The infection was neither elective nor avoidable.

(e) Denying my claim after I acted in good faith undermines the essence of insurance itself. It sends a message that even genuine policyholders cannot rely on the promise they paid for.

(f) The claim be reimbursed in accordance with the terms of the policy, the principles of natural justice, and the moral obligation of the insurer to protect its clients.

7. The insurance Grievance Redressal Officer replied vide e-mail dated 25.6.25-

As discussed over the call, we regret to inform you that it cannot be honored. After carefully reviewing your claim, we noticed that you have filed a claim for the expenses incurred for the treatment of a condition falling under the waiting period. Unfortunately, these costs are not a part of your insurance coverage. As a result, we are unable to approve your claim.

Contention of the complainant:

8. Complainant reiterated aspects on lines mentioned in brief facts above.

Contention of the Respondent:

9. The insurer's Self-contained Notes dated 8.10.25 reiterated the contentions as mentioned in brief facts above.

10. Insurer also informed the claim is declined in accordance with the terms and conditions of the policy. The clause reads as under: "4.1.2 Specific Illnesses. Any medical expenses related to the following medical disease will not be covered for 2 years. a. Expenses related to the treatment of the listed Conditions, surgeries/treatments shall be excluded until the expiry of number of months, as specified in the Schedule, of continuous coverage after the date of inception of the first policy with Us.

The insured had undergone surgery of the genitourinary system which is a specific procedure listed under section 4.1.2.f (3) on page no.29 of the policy wordings.

Observation and conclusions:

Hearing

11. The complainant Mr Vikas Gandhi, and insurer represented by Mr. Ravi Inkollu, DGM Litigation were present online for personal hearing on 24/06/2026.

During the hearing, briefly put -

(a) Complainant drew attention to the biopsy report dated 30/6/2025 to say that Impression of "BXO" mentioned therein is a pre-malignant condition and 6 % chances of malignancy are there, so the claim is payable.

(b) Complainant was asked if there was any post operative medical paper to this effect, to which there was no clear reply.

(c) Complainant submitted that the policy wording "Any Surgery of the genitourinary system unless necessitated by malignancy" would cover something that has chances of being malignant.

(d) Insurer submitted that in the light of the above words in the policy, the words cannot be reconstructed to include cases of the type when there is no evidence of malignancy.

Further discussion and findings

12. Since the matter is contested, the documents on records and submission have been examined for passing an award.

13. It is noted that it is not disputed that the procedure was medically necessary and it was undertaken to address the complaint /problem of poor flow of urine, and it has also been conveyed by complainant that he had serious infection.

14. In this sense, the procedure involving circumcision + meatoplasty would not be covered under the Permanent Exclusion clause 4.2.3 of the policy as it has been necessitated by illness and forming part of treatment.

15. However, since it is not arising from an "accident", it is needed to decide if the procedure, definitely being Surgeries of the genitourinary System, is hit by waiting period of 2 years clause 4.1.2 of policy.

16. To be not hit, the procedure should have been necessitated by malignancy. The Histopathology report dated 30.06.2025 states - "No evidence of granuloma/dysplasia/Malignancy seen".

Thus, it is concluded that the Impression of Prepuce of glans recorded in the report as "consistent with lichen sclerosis (Balanitis Xerotica Obliterans)" relates to the other aspects recorded in the microscopic examinations, in relation to which the "no evidence of granuloma/dysplasia/Malignancy seen" has been recorded in the report.

17. It is found that the words of the Histopathology Report rule out malignancy . It is viewed that a hypothetical projection of likelihood of malignancy devoid of medical papers (in the case) to this effect, would not be an objective methodology to assess the terms of the policy wording.

18. Accordingly, read holistically and harmoniously, no reason is found to interfere with the decision of the Insurer.

AWARD

COMPLAINT REF: NO: NOI-H-056-2526-0961

Based on the pleadings and evidence brought on record in this case, and the discussion and findings above, and further keeping in mind provisions of the Insurance Ombudsman Rules 2017, no grounds are found to support the complaint and no reason is found to interfere with the decision of the Insurer.

Accordingly, the complaint is dismissed.

AWARD NO:IO/NOI/A/HI/0061/2026-2027
Date:02/Jul/2026

INSURANCE OMBUDSMAN
Noida